

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 09/21/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

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ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01486
CASE NAME: JOE CONLEY VS. LINDA'S RESIDENTIAL CARE III LLC
***HEARING ON MOTION IN RE: TO SET ASIDE ENTRY OF DEFAULT AND LEAVE TO FILE AN ANSWER**
FILED BY: LINDA'S RESIDENTIAL CARE III LLC
TENTATIVE RULING:

Defendant Linda's Residential Care III LLC and Erlina Portillo's motion to set aside entry of default is **DENIED**.

Defendants move to set aside the default under Code of Civil Procedure section 473(d), which provides that the court "may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code of Civil Procedure § 473(d).)

Plaintiff filed this case for employment related claims, including FEHA disability discrimination and wage and hour claims on July 21, 2022. Plaintiff sued his employer, Linda's Residential Care, and the managing member and CEO of Linda's Residential Care, Erlina Portillo. Plaintiff obtained a default against both Defendants, however, he later set aside that default. It appears the first default was set aside

because the original complaint did not include the amount of damages. Whether or not the first default was proper is not the issue since Plaintiff amended his complaint.

Plaintiff filed a first amended complaint on February 5, 2024. Plaintiff filed proofs of services showing substitute service on both defendants on April 29, 2024. Plaintiff obtained a default against both defendants on June 11, 2024. This motion was filed on April 23, 2026. On the same date, Defendants filed an ex parte application requesting that this motion be heard before the default prove up hearing.

“Where, as here, a motion to vacate is made more than six months after entry of a judgment, a trial court may grant a motion to set aside that judgment as void only if the judgment is void on its face. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441; § 473, subd. (d).) ‘ “A judgment or order is said to be void on its face when the invalidity is apparent upon an inspection of the judgment-roll.” [Citation.]’ (*Dill v. Berquist Construction Co.*, *supra*, at p. 1441.)” (*Ramos v. Homeward Residential, Inc.* (2014) 223 Cal.App.4th 1434, 1440.) To determine if the judgment is void on its face, the court reviews the judgment roll, which “is limited to the summons, proof of service of the summons, complaint, request for entry of default, copy of the judgment, notice of any ruling overruling a demurrer interposed by the defendant and proof of service thereof, and, if service was by publication, affidavit for publication and order directing it. ([Code of Civil Proc.] § 670, subd. (a).)” (*Ramos, supra*, 223 Cal.App.4th at 1440.)

Further, “ [c]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.] Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void. [Citation.]’ [Citation.] Under section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service. [Citations.]” (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.)

Proofs of Service

The proofs of service for the summons, first amended complaint and statement of damages (one for Portillo and one for Linda’s Residential Care) show substitute service on April 29, 2024, at 4:58 p.m. with service on John Doe at 5145 Turnball Court in Antioch. John Doe is described as a Latino male, age 28, 5’8”, 180 pounds and an employee. Both Defendants were then mailed copies of the documents the following day.

As to Linda’s Residential Care, Portillo was identified as the person authorized to accept service of process. In the declaration of diligence for service on Portillo it shows two unsuccessful attempts at service at “Business (Linda’s Residential Care): 5145 Turnball Court” on different days and times. The third attempt was “successful” based upon service on John Doe. The notes state that “A young Brazilian-Latino man, around 28 years old, 5’8” tall, with black hair and eyes, weighing about 180 pounds, introduced himself at the door as an employee and offered to deliver the documents to Erlinda Portillo.”

The Court notes that there is a minor discrepancy in the spelling of Turnball Court. The proofs of service reference Turnball Court, however, Portillo’s declaration, Balogh Declaration (RJN D) and the statement of information from the Secretary of State (RJN 1) all refer to Turnbull court. The Court does not find that this apparent minor typographical error in the as-filed proof of service document somehow rendered the service defective.

Service on Portillo

Here, Defendants argue there was a lack of reasonable diligence because there were only two attempts before substitute service was made.

When serving individual defendants by substitute service, a party must first use reasonable diligence in attempting to personally serve the individual. (Code of Civil Procedure section 415.20(b).) No such diligence is required when serving an entity. (Code of Civil Procedure section 415.20(a).)

Case law finds that “in order to avail oneself of substituted service under section 415.20, ‘[t]wo or three attempts to personally serve a defendant at a proper place ordinarily qualifies as “ ‘reasonable diligence.’ ” [Citation.]’ [Citation.]” (*Board of Trustees of Leland Stanford Junior University v. Ham* (2013) 216 Cal.App.4th 330, 337.)

Contra Costa Local Rule 3.7(4) states that “For purposes of Code of Civil Procedure section 415.20(b), a party shows reasonable diligence in attempting personal service by attempting personal delivery in good faith on at least three occasions. The party’s attempts at personal service must occur on at least two different days of the week, and if service is at a dwelling, at least one attempt must occur on a Saturday or Sunday. If a party meets these requirements, a court clerk will find that the reasonable diligence requirement is met.”

As an initial matter, the Court does not read Local Rule 3.7(4) as always requiring three attempts as service in order to show reasonable diligence. Rather, this rule sets a ceiling, not a floor, on the number of service attempts required. The Court here finds that two or three attempts at service shows diligence, depending on the specific situation in the case. Here, the declaration of diligence shows three attempts to serve Portillo with the third attempt resulting in substitute service on John Doe.

Defendants also argue that Plaintiff should have attempted service at 740 Bonnie Lane in Brentwood as the administrative office location for Linda’s Residential or at Portillo’s personal residence. Code of Civil Procedure section 415.20(b) requires service at “the person’s dwelling house, usual place of abode, *usual place of business*, or usual mailing address other than a United States Postal Service post office box...”. Here, service was at 5145 Turnbull Court. Portillo is the owner and operator of Linda’s Residential Care at 5145 Turnbull Court. Defendants do not dispute that Portillo was the administrator of Linda’s Residential Care and was frequently present at that location, but Defendants argue there is no evidence that she was present on the day substitute service was attempted. The Court finds that Linda’s Residential Care at 5145 Turnbull Court was Portillo’s usual place of business and thus, a proper place to conduct substitute service.

Service on Linda’s Residential

Defendants argue that service on Linda’s Residential was invalid because it was not served on an authorized person to receive service on behalf of the company under Code of Civil Procedure section 415.20(a). Defendants argue that John Doe was not an authorized person and that Portillo never received the papers.

Section 415.20, subdivision (a), provides that in lieu of personal service on a corporate officer or authorized agent listed in section 416.10, “a summons may be served by leaving a copy of the summons and complaint during usual office hours in his or her office ... with the person who is apparently in charge thereof...” (Code of Civil Procedure § 415.20 (a).)

In *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App.4th 1387 the court held that substitute service on a residential gate security guard was valid because the security guard as “a component member of the household and the person apparently in charge.” (*Id.* at 1393.) The court found that defendants had authorized the guard to control access to them and their residence. (*Ibid.*) The court explained that “[s]ervice must be made upon a person whose ‘relationship with the person to be served makes it more likely than not that they will deliver process to the named party.’ [Citation.]” (*Ibid.*)

In *Khourie v. Sabek* (1990) 220 Cal.App.3d 1009 plaintiff attempted to serve a company, however, the company refused to let him enter. The process server left a copy of the summons and complaint with an individual, “apparently in charge” of the office – “i.e., the only person who responded to his attempt to enter.” (*Id.* at 1012-1013.)

In *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742 substitute service on the office manager was valid. (*Id.* at 747.) The court found a declaration of substitute service by the process server and then found that the defendant did not defeat the presumption under Evidence Code section 647. (*Id.* at 751.) The court explained that defendant’s declaration “did not establish that [the person given the papers] was not his office manager, that she could not accept substitute service for him, that the address was not his usual place of business, or anything else along those lines.” (*Id.* at 750.)

The process server’s declaration of diligence (from service on Portillo) states that “A young Brazilian-Latino man, around 28 years old, 5'8" tall, with black hair and eyes, weighing about 180 pounds, introduced himself at the door as an employee and offered to deliver the documents to Erlinda Portillo.” This creates a presumption of service under Evidence code section 647.

Defendants argue that John Doe was improper because no one knows who he was and he could have been a resident of the care facility. Portillo says she does not know “John Doe” and that he was not an employee. Defendants speculate that John Doe might have been a resident, but Portillo has not attempted to identify any such resident. Portillo also declares that some of the facility’s residences have severe mental disabilities, but they are permitted to access the mailbox. Portillo does not explain whether residents can freely access the front door.

Here, Portillo declares that she does not know who John Doe is and that he was not one of her employees. This evidence is sufficient to defeat the presumption under Evidence Code section 647. When that presumption is removed, “the trier of fact shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption.” (Evid. Code, § 604.)

According to the process server, John Doe answered the door, introduced himself as an employee and offered to take the papers. While Portillo explains that residences were given access to the mailbox, there is no evidence that residents were given access to the front door. Defendants offer no explanation for how a resident could access the front door. Nor has Portillo identified any resident in the care facility at the time of service that had an appearance similar to John Doe. It is uncontroverted that John Doe met the server at the door and introduced himself as an employee, promising to give the papers to Portillo. The Court has considered Portillo’s declaration and the process server’s declaration of diligence and finds that John Doe was a person “apparently in charge” of the facility. Therefore, service on Linda’s Residential Care was proper.

Statement of Damages

Defendants argue that the default was also void as to both Defendants because Portillo never received the FAC nor Statement of Damages. The proof of services shows that both the FAC and

Statement of Damages were served by substitute service. The motion here is based upon Code of Civil Procedure section 473(d) and requires showing that there is a problem with the documents in the judgment roll. Lack of actual notice is often a consideration under Code of Civil Procedure section 473.5, however, this motion was not brought under that section.

In the moving papers it appears that Defendant might have been arguing that Plaintiff was required to personally serve the statement of damages. In reply, however, Defendant acknowledges that the real issue here is whether Defendants were properly served with the FAC and statement of damages. When a party has not appeared in the case, the statement of damages must be served in the same manner as the summons. (Code of Civil Procedure § 425.11(d)(1).) Thus, substitute service, if done properly, can be used to serve a statement of damages.

Public Policy and Prejudice

Defendants argue that public policy supports granting this motion. While public policy often favors a trial on the merits, the Court requires a valid legal ground for finding the default void.

Defendants also argue that Plaintiff will not be prejudiced, but the majority of cases cited by Defendants involved Code of Civil Procedure section 473(b), which involves a different analysis. In *Grappo v. McMills* (2017) 11 Cal. App. 5th 996, the court found there was a void judgment. Further, the discussion on section 473 and prejudice was quoted from another case discussing 473(b). (*Id.* at 1005.)

Judicial Notice

The Court grants Defendants' requests for judicial notice. Exhibits A, B and D are documents filed in this case and exhibit C is from the California Secretary of State.

The Court grants Plaintiff's request for judicial notice as to exhibit 1, 7 and 8. Exhibits 1 and 8 are records of the state and exhibit 7 is a state regulation. The Court grants the request for judicial notice as to exhibits 2 through 6, however, the Court cannot take judicial notice of all facts stated within the narrative portion of the report. However, the Court can take judicial notice that Portillo is listed as the administrator for Linda's Residential Care located at 5145 Turnbull Court.

While these reports may be appropriate for judicial notice in some respects, Plaintiff is attempting to have the court take the truth of facts stated within the report which goes beyond the boundaries of judicial notice.

2. 9:00 AM CASE NUMBER: C22-02054
CASE NAME: CHRISTOPHER WRIGHT VS. SWINERTON BUILDERS
HEARING ON SUMMARY MOTION
FILED BY:
TENTATIVE RULING:

This hearing date has been **DROPPED** from calendar. See Notice filed September 15, 2026.

3. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING ON DEMURRER TO: TO 3RD AMENDED PETITION
FILED BY: STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
TENTATIVE RULING:

Before the Court is a demurrer to Tania Marker's Third Amended Complaint, filed by Michelle Baass, in her official capacity as Director of the California Department of Health Care Services, and the California Health and Human Services Agency.

This hearing is CONTINUED to October 12, 2026 at 9:00 a.m. in this Department. Code of Civil Procedure section 430.41, subdivision (a) states:

Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. *If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading.*

(Code Civ. Proc., § 430.41 (a), emphasis added.)

Moving defendants have failed to show they complied with the above with respect to the Third Amended Complaint, the subject of the present demurrer. It appears such efforts were made in the past, resulting in a stipulation filed on November 19, 2025 to allow the filing of the present complaint, but the effort was not repeated following the amended pleading. This does not meet the statutory requirements.

This matter is continued so that the parties can engage in a good faith meet and confer process that complies with the above-mentioned statutory requirement. Defendants shall meet and confer with petitioner, as required, and file a declaration regarding compliance by October 5th. If the parties reach an agreement about any of the matters raised in the motion, or agree to stipulate to an amended petition, the declaration shall include a description of these matters.

4. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING ON DEMURRER TO: 3RD AMENDED PETITION
FILED BY: MAXIMUS, INC.
TENTATIVE RULING:

Before the Court is a demurrer to Tania Marker's Third Amended Complaint, filed by the "real party in interest," Maximus, Inc. (erroneously sued as Maximus Federal Services). Maximus cites Code of Civil Procedure, § 430.10, subdivisions (a) and (d)-(f). The demurrer is **SUSTAINED without leave to amend** because while petitioner is not necessarily precluded from seeking another form of relief, she cannot state facts constituting a cause of action for administrative mandate against Maximus, as discussed below.

Maximus's demurrer points out that the only cause of action petitioner is seeking is a writ of

mandate to correct an allegedly wrongful denial of her Medical Exemption Request, yet her verified allegations concede that Maximus is not a government administrative body responsible for the challenged decision.

A petition for writ of mandate must name the real party in interest, who thereafter has a right to notice and to be heard before a court issues a writ. (*Sonoma County Nuclear Free Zone v. Superior Court* (1987) 189 Cal.App.3d 167, 173, citations omitted.) “Real party in interest” has been generally defined as “any person or entity whose interest will be directly affected by the proceeding. (*Id.* at 173-174, citations omitted.)

The California Welfare and Institutions Code vests the Department of Health Care Services with authority over the administrative hearing process for Medi-Cal beneficiaries and the TAC concedes that “Maximus Federal Services is DHCS’s contractor and responsible for MER processing.”

Maximus correctly argues that government contractors, like Maximus, are not “real parties in interest” simply based on their being hired to manage a state-mandated program. (See *Hayes v. State Dept. of Developmental Services* (2006) 138 Cal.App.4th 1523, 1532 [where government agency holds power to set aside the decision made by their hearing officer / representative, agency could direct its representative to enter a new and different decision consistent with the trial court's ruling so a petitioner can be accorded complete relief without the contractor responsible for administering the hearing].) Maximus is not alleged to hold any particular interest or stake in the outcome of the administrative decision being reviewed.

Maximus’s demurrer to the writ is supported by petitioner’s own disaffirmance of any allegation that Maximus was the final decisionmaker. (Memorandum of Points and Authorities in Support of Opposition, 13:24-14:1.) The demurrer is further supported by the California Department of Health Care Services (apparently the correctly-named government entity), which requests that Maximus be dismissed as an improperly-named party. (Memorandum of Points and Authorities in Support of Demurrer, filed April 27, 2026, 21:16-18.)

5. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING IN RE: JOINDER IN DEMURRER INITIALLY FILED BY CO-RESPONDENT CALIFORNIA
DEPARTMENT OF HEALTH CARE SERVICES ON APRIL 27, 2026
FILED BY: CALIFORNIA DEPARTMENT OF SOCIAL SERVICES

TENTATIVE RULING:

CONTINUED. Please see Line 3.

6. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING IN RE: JOINDER IN RESPONDENTS BAAS AND CALIFORNIA DEPT. OF HEALTH CARE
SERVICES 09/21/26 DEMURRER
FILED BY: MAXIMUS, INC.

TENTATIVE RULING:

DENIED as moot. Please see Line 4.

7. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT
FILED BY: SAFFARIAN, AMIR
TENTATIVE RULING:

CONTINUED to October 5, 2026 at 9:00 a.m.

8. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

CONTINUED to October 5, 2026 at 9:00 a.m.

9. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
*HEARING ON MOTION IN RE: DISQUALIFY ATTORNEY ALLISON RENEE BRACY
FILED BY: PARKER, SHILOH A.
TENTATIVE RULING:

Plaintiff Shiloh A. Parker (“Plaintiff”) filed a motion for an order disqualifying Allison Renee Bracy (“Ms. Bracy”) from serving as counsel for “herself, Bracy Law, and Channing Hawkins” in this lawsuit on May 11, 2026 (the “Motion to Disqualify Counsel”). The Motion to Disqualify Counsel was set for hearing on September 21, 2026. The motion is opposed.

Background

The operative complaint is Plaintiff’s Third Amended Complaint filed June 24, 2026 (the “Current Operative Complaint”). The named defendants are Bracy Law PC (f/k/a BRACYHAWKINSLAW, PC), Channing Hawkins, Jendayi Saada, and Allison Renee Bracy (collectively, “defendants”).

The Current Operative Complaint contains a single cause of action for slander as against all of the defendants. It is alleged that Channing Hawkins, Jendayi Saada, and Allison Renee Bracy “published false statements of fact about Plaintiff” regarding to assertions to the effect that Plaintiff stole money from her law clients. See Current Operative Complaint, ¶18.

Analysis

A court's authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice. *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469. Disqualification, however, is “a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a ‘substantial continuing effect on future judicial proceedings.’” *Id.* at 462, quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309.

Ultimately, disqualification motions involve a conflict between the clients’ right to counsel of their choice

and the need to maintain ethical standards of professional responsibility. *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145. “The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one’s choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” *Id.*

Plaintiff contends that Ms. Bracy must be disqualified because she is a defendant in the action and a material witness to the circumstances underlying the claim. She also contends that Ms. Bracy has used her close relationship with the defendant to “obstruct the timely prosecution of this matter,” including as relates to discovery proceedings.

Ms. Bracy denies that she has personal knowledge of the subject alleged defamatory statements. See Declaration of Allison R. Bracy filed September 10, 2026 (“Bracy Decl.”) ¶¶4-7. She represents that she does “not presently anticipate offering testimony at trial concerning the merits of Plaintiff’s defamation claim because [she has] no percipient knowledge of the alleged defamatory publication.” *Id.* at ¶12.

The opposition also asserts a procedural defect in that the motion was never served. See *id.* at ¶14.

Service

A proof of service of the Motion to Disqualify Counsel was filed on May 11, 2026. It reflects service of the motion by electronic mail on Ms. Bracy at abracy@bracy.law. That email matches the email reflected on Ms. Bracy’s filed pleadings.

Merits

Rule 3.7(a) of the Rules of Professional Conduct provides that a “lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness...” See Cal. Rules of Prof. Conduct, Rule 3.7(a). “Trial” is not limited to representation only at the trial itself. Instead, “to effectuate the rule’s purpose of avoiding fact finder confusion, [courts] interpret the rule’s use of the term ‘trial’ to encompass a pretrial evidentiary hearing at which counsel is likely to testify.” *Doe v. Yim* (2020) 55 Cal.App.5th 573, 583. Moreover, “most courts recognize that an attorney who intends to testify at trial may not participate in ‘any pretrial activities which carry the risk of revealing the attorney’s dual role to the jury.’” *Id.* A testifying attorney should not take or defend depositions. *Id.*

This rule is subject to certain exceptions, including where the lawyer has obtained the client’s informed written consent. See Cal. Rules of Prof. Conduct, Rule 3.7(a)(1)-(3). “[T]he general rule is that an attorney may serve as both advocate and witness ... if the client has provided its informed written consent.” *Gerringer v. Blue Rider Finance* (2023) 94 Cal.App.5th 813, 822. However, this exception is not absolute, and a court can still limit an attorney’s role “to protect the trier of fact from being misled or the opposing party from being prejudiced.” *Id.* at 821-22. “The court’s discretion to disqualify a likely advocate-witness notwithstanding client consent – the exception to the exception – has been judicially interpreted to be permissible only upon **‘a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process.’**” *Id.* at 822.

“In exercising its discretion to disqualify counsel under the advocate-witness rule, a court must consider: (1) ‘whether counsel’s testimony is, in fact, genuinely needed’; (2) ‘the possibility [opposing] counsel is using the motion to disqualify for purely tactical reasons’; (3) ‘the combined effects of the strong interests parties have in representation by counsel of their choice, and in avoiding the duplicate expense and time-consuming effort involved in replacing counsel already familiar with the case.’” *Doe*, supra, 55

Cal.App.5th at 583 quoting *Smith, Smith & Kring v. Superior Court* (1997) 60 Cal.App.4th 573, 580-81. “[T]rial judges must indicate on the record they have considered the appropriate factors and make specific findings of fact when weighing the conflicting interests in recusal motions.” *Id.* at 584.

Having considered the totality of the evidence, the Court does not conclude that Plaintiff has adequately shown that Ms. Bracy is likely to be a material witness. And even if some tangential testimony were needed from her in relation to things like authentication of documents or other general matters, the Court concludes that lesser remedies are likely available. Ms. Bracy’s clients’ right to be represented by counsel of their choice (and to represent herself if she chooses) and their interests in avoiding the need for replacement counsel, strongly outweigh any relatively minor concern over any such tangential testimony that might be needed from Ms. Bracy. In addition, it appears that Plaintiff’s interest in disqualifying Ms. Brach stems from more tactical considerations, seeking to prevent her from participating as counsel given the close relationship with the other named defendants.

Furthermore, the Court does not find that Plaintiff has made a convincing demonstration that detriment to her or injury to the integrity of the judicial process would result from Ms. Bracy’s ongoing representation.

Nor does the Court conclude that the issues raised regarding asserted discovery compliance or lack thereof justifies or supports disqualification.

Disposition

The Court further finds and orders as follows:

1. The Motion to Disqualify Counsel is DENIED.
2. The Court shall issue the order.

10. 9:00 AM CASE NUMBER: C25-01690
CASE NAME: SHIMMICK CONSTRUCTION COMPANY, INC. VS. CITY OF ANTIOCH
***HEARING ON MOTION IN RE: COMPEL**
FILED BY:
TENTATIVE RULING:

Defendant City of Antioch (the “City”) filed a motion to compel compliance with deposition subpoena for production of business records (the “Motion to Compel”) to third party S. G. Banks, Inc. (the “Third Party”) on February 6, 2026. The motion was set for hearing on June 29, 2026 and, later, continued to September 21, 2026.

Background

The deposition subpoena was served on the Third Party on November 10, 2025. See Declaration of Harry J. Moren re Motion to Compel Compliance filed February 6, 2026, ¶13 and **Exhibit 2** thereto (including Proof of Service dated November 10, 2025). No responses to the subpoena were received by the filing of the Motion to Compel. *Id.* at ¶14.

The City was unable to serve the Third Party and filed an *ex parte* application for service by delivery to the Secretary of State. See Declaration of Harry J. Moren re Ex Parte Application filed May 19, 2026, ¶21-23 and **Exhibits 5, 6, and 7** thereto; Ex Parte Application re Authorization of Service filed May 19,

2026. The application was approved by the Court on May 22, 2026. See Order re Authorizing Service filed May 26, 2026.

Per the City, the Secretary of State refused to comply with this order because such service was only authorized for service of process and not as to service for subsequent papers. See Reply re Motion to Compel Compliance filed June 22, 2026 (the “June Reply”), ¶13; Declaration of Harry J. Moren re Reply filed June 22, 2026, ¶15 and **Exhibit 6** thereto (including letter from the California Secretary of State dated June 2, 2026).

In the prior June Reply paper, the City requested the hearing on the Motion to Compel be held in abeyance pending service and the hearing continued. See June Reply, ¶16.

Accordingly, the matter was continued to September 21, 2026. See Minute Order dated July 2, 2026. The moving party was directed to timely serve this motion before the next hearing or else advise the Court if it is withdrawn. *Id.*

In a recently filed further Reply paper, the City requests that the Court continue the hearing for 90 days to allow the City additional time to complete service on Banks. See Reply filed September 15, 2026.

Analysis

The Court in its discretion will continue the hearing to December 28, 2026, 9:00 am, in Department 34.

Disposition

The Court finds and orders as follows:

1. The hearing on the Motion to Compel is hereby **CONTINUED** to **December 28, 2026, 9:00 am**, in **Department 34**.
2. The City shall timely serve this motion before the next hearing or else advise the Court if it is withdrawn.
3. The Court shall issue the order after hearing.
4. Moving party to file an amended notice of motion and serve such amended notice on the Third Party along with a copy of this order and the underlying papers.

11. 9:00 AM CASE NUMBER: C25-03626
CASE NAME: JUAN GARCIA GALAN VS. NATIONS FOODSERVICE, INC.,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: NATIONS FOODSERVICE, INC.,
TENTATIVE RULING:

Defendant Nation’s Foodservice, Inc. (“Defendant”) filed a Motion to Compel Arbitration on May 13, 2026 (the “Motion to Compel Arbitration”). The Motion to Compel Arbitration was set for hearing on September 21, 2026. No opposition was filed.

Background and Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard “in a summary way in the manner ... provided by law for the making and hearing of motions.” Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) (“FAA”) applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098.

The moving party Defendant has shown that a written agreement to arbitrate exists between the parties. It is also evident that the claims at issue in this action are within the scope of and subject to that agreement. See Declaration of Raquel Gatchalian filed May 13, 2026, ¶¶3-4 and **Exhibit B** (the “MAA”) thereto.

However, the moving party Defendant has not shown adequate demand and notice for arbitration **in accordance with the terms of the operative arbitration agreement**. See MAA, ¶3 (“A party wishing to initiate arbitration must notify the other party in writing by hand delivery or certified mail.”). **None of the three declarations filed in support of the motion reference any such written notice served by “hand delivery or certified mail.”**

While the Court notes that there was an effort to confer with the opposing party regarding a stipulation, no showing was made of a proper demand under the MAA. *Mansouri v. Superior Court* (2010) 181 Cal.App.4th 633, 641 (a party moving to compel arbitration must show a request or demand for arbitration in compliance with the terms of the written agreement to arbitrate has been made and refused); *Platt Pacific, Inc. v. Andelson* (1993) 6 Cal. 4th 307, 313 (demand for arbitration according to the terms of the arbitration agreement is a condition precedent to right to compel arbitration).

Nonetheless, the Court encourages the parties to further confer regarding a voluntary stipulation for arbitration to avoid unnecessary further motion practice if a demand can or already has been made in conformance with the agreement terms and conditions.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Arbitration is **DENIED, WITHOUT PREJUDICE**.
2. The Court shall issue the order.

12. 9:00 AM CASE NUMBER: C26-00308
CASE NAME: SYIMYK KALYKOV VS. CHRIS BRECHEISEN
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF CONCORD

TENTATIVE RULING:

This matter is **continued to November 2, 2026**.

Plaintiff's declaration in opposition to the demurrer is missing the attached exhibits. Further, Plaintiff has provided new facts in its opposition and the parties are ordered to meet and confer regarding whether Plaintiff should amend his complaint now and then the Defendants be permitted to demurrer to the amended complaint.

The parties shall engage in a meet and confer by Zoom or telephone no later than October 12, 2026. Defendants Contra Costa Transportation Authority and the City of Concord will file and serve a declaration by October 19, 2026. The declaration will confirm whether the meet and confer occurred and identify any items the parties were able to reach an agreement on, including whether they can stipulate to allow Plaintiff leave to amend the complaint. This declaration may also address whether Plaintiff gave Defendants an extension of time to answer as opposed to file a responsive pleading. Plaintiff may file and serve a declaration addressing the issue by October 26, 2026, and may include the exhibits referred in the declaration filed with the opposition. No further briefing is permitted.

13. 9:00 AM CASE NUMBER: C26-00467
CASE NAME: PETRO-ANALYTICAL, INC., VS. TANK-TEK ENVIRONMENTAL CORPORATION,
***HEARING ON MOTION IN RE: STRIKE THE CROSS-COMPLAINT OF TANK-TEK ENVIRONMENTAL CORPORATION**
FILED BY: PETRO-ANALYTICAL, INC.,
TENTATIVE RULING:

Before the Court is a motion by cross-defendant Petro-Analytical, Inc. to strike certain relief sought in the cross-complaint of Tank-Tek Environmental Corporation. For the reasons set forth, the motion is **GRANTED, WITH LEAVE TO AMEND**.

Background

Plaintiff and cross-defendant Petro-Analytical, Inc. ("Petro") filed a complaint against defendant and cross-complainant Tank-Tek Environmental Corporation ("Tank-Tek") for breach of contract and an accounting arising out of a written Gross Profit and Revenue Sharing Agreement. (Compl. ¶ 6.) Petro alleges Tank-Tek agreed to invoice clients referred to Tank-Tek by Petro, collect the invoices, and remit a share of the profits to Petro. (Compl. ¶ 7.) Petro alleges that Tank-Tek owes Petro \$214,088.07 for invoices through December 11, 2025 but claims damages for breach of the agreement estimated to be over \$500,000. (Compl. ¶¶ 10, 20.)

Tank-Tek filed a cross-complaint against Petro, alleging five causes of action. Tank-Tek alleges it had a "long-standing business relationship" with Petro, and that it had an oral contract with Petro to act as Petro's subcontractor for underground storage tank inspection, compliance and repairs. (X-Compl. ¶

5.) It alleges that within the last two years, there was an accrued amount owing to Tank-Tek of \$407,884.69. (X-Compl. ¶¶ 5, 6, 8, 10, 13.) Tank-Tek alleges a claim for breach of an oral contract (1st C/A), account stated (2nd C/A), open book account (3rd C/A), goods and services rendered (4th C/A), and unjust enrichment (5th C/A). Tank-Tek prays for recovery of "attorney' fees, expenses and costs of suit, as allowable by law" in paragraph 3 of the prayer for relief. Petro moves to strike the prayer for attorneys' fees as unsupported by law and the allegations of the cross-complaint.

Standards for Ruling on Motion to Strike

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. § 436(a) and (b).) A court may strike allegations on the ground that the allegations "request[] relief not supported by the allegations of the complaint." (Code Civ. Proc. § 431.10(b)(3).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice. (Code Civ. Proc. § 437; *Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 ["A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true," citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Analysis

Code of Civil Procedure section 1021 recognizes a party's right to recover attorneys' fees based on a contractual right to such fees or as provided by statute. (*Trope v. Katz* (1995) 11 Cal.4th 274, 278-279 [stating California generally follows the American rule with each party to bear its own attorneys' fees, but that Code of Civil Procedure section 1021 allows parties to "contract out" of the American rule].) The cross-complaint alleges a breach of an oral contract, not a written contract with an attorneys' fees clause. (X-Compl. ¶¶ 5, 6, 8, 10, 13.) The cross-complaint itself does not cite or allege any contractual or statutory basis for recovery of attorneys' fees, but Tank-Tek asserts in its opposition to the motion that it can recover attorneys' fees on its open book account cause of action (3rd C/A) pursuant to Civil Code section 1717.5.

Civil Code section 1717.5 provides in pertinent part, "[I]n any action on a contract based on a book account, as defined in Section 337a of the Code of Civil Procedure, entered into on or after January 1, 1987, which does not provide for attorney's fees and costs, as provided in Section 1717, the party who is determined to be the party prevailing on the contract shall be entitled to reasonable attorney's fees, as provided below, in addition to other costs." (Civ. Code § 1717.5(a)(1).) While this statute may provide a basis for recovery of attorneys' fees on an open book account claim, the Court has issued concurrently a tentative ruling sustaining Petro's demurrer to Tank-Tek's open book account cause of action. Tank-Tek has not cited any other legal basis for recovery of attorneys' fees on any other cause of action.

Conclusion and Ruling

The motion to strike the request for attorney's fees is **GRANTED**; the phrase "attorney's fees" in paragraph 3 of the prayer for relief shall be stricken, **WITH LEAVE TO AMEND** to the extent Tank-Tek amends its third cause of action to state a valid cause of action for an open book account.

14. 9:00 AM CASE NUMBER: C26-00467
CASE NAME: PETRO-ANALYTICAL, INC., VS. TANK-TEK ENVIRONMENTAL CORPORATION,
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: PETRO-ANALYTICAL, INC.,
TENTATIVE RULING:

Before the Court is a demurrer by cross-defendant Petro-Analytical, Inc. to the cross-complaint of Tank-Tek Environmental Corporation. For the reasons set forth, the Court rules on the demurrer as set forth in the conclusion below.

Background

Plaintiff and cross-defendant Petro-Analytical, Inc. ("Petro") filed a complaint against defendant and cross-complainant Tank-Tek Environmental Corporation ("Tank-Tek") for breach of contract and an accounting arising out of a written Gross Profit and Revenue Sharing Agreement. (Compl. ¶ 6.) Petro alleges Tank-Tek agreed to invoice clients referred to Tank-Tek by Petro, collect the invoices, and remit a share of the profits to Petro. (Compl. ¶ 7.) Petro alleges that Tank-Tek owes Petro \$214,088.07 for invoices through December 11, 2025 but claims damages for breach of the agreement estimated to be over \$500,000. (Compl. ¶¶ 10, 20.)

Tank-Tek filed a cross-complaint against Petro, alleging five causes of action. Tank-Tek alleges it had a "long-standing business relationship" with Petro, and that it had an oral contract with Petro to act as Petro's subcontractor for underground storage tank inspection, compliance and repairs. (X-Compl. ¶ 5.) It alleges that within the last two years, there was an accrued amount owing to Tank-Tek of \$407,884.69. (X-Compl. ¶¶ 5, 6, 8, 10, 13.) Tank-Tek alleges a claim for breach of an oral contract (1st C/A), account stated (2nd C/A), open book account (3rd C/A), goods and services rendered (4th C/A), and unjust enrichment (5th C/A).

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the cross-complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) In ruling on the demurrer, the Court does not consider evidence outside the pleading, except matters subject to judicial notice. (*Carlson v. County of Alameda* (2015) 242 Cal. App.4th 116, 123; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

In determining whether the complaint states a cause of action, the Court evaluates "whether a cause of action has been stated under any legal theory. [Citation omitted.]" (*Gomez v. Regents of University of California* (2021) 63 Cal.App.5th 386, 391.) (See also *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38 ["If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer."].) If there is a reasonable possibility of amendment to cure the deficiencies in a complaint, then leave to amend must be granted. (*Quelimane Co., supra*, 19 Cal.4th at 39.)

Analysis

Petro makes general demurrers to the second, third and fifth causes of action, and special demurrers

for uncertainty to the second and third causes of action.

A. Account Stated (2nd C/A)

Both parties cite *Zinn v. Fred R. Bright Co.* (1969) 271 Cal.App.2d 597 for the elements of an account stated cause of action. "The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due. [Citations omitted.]" (*Id.* at 600.)

"An account stated is an agreement, based on prior transactions between the parties, that the items of an account are true and that the balance struck is due and owing. [Citation omitted.] To be an account stated, 'it must appear that at the time of the statement an indebtedness from one party to the other existed, that a balance was then struck and agreed to be the correct sum owing from the debtor to the creditor, and that the debtor expressly or impliedly promised to pay to the creditor the amount thus determined to be owing.' [Citation omitted.] The agreement necessary to establish an account stated need not be express and is frequently implied from the circumstances. When a statement is rendered to a debtor and no reply is made in a reasonable time, the law implies an agreement that the account is correct as rendered. [Citation omitted.] [¶] Actions on accounts stated frequently arise from a series of transactions which also constitute an open book account. [Citations omitted.] . . . The acknowledgement of a debt consisting of a single item may form the basis of a stated account. [Citations omitted.] The key element in every context is agreement on the final balance due. [Citation omitted.]" (*Maggio, Inc. v. Neal* (1987) 196 Cal.App.3d 745, 752-753 [emphasis added].) (*See also Trafton v. Youngblood* (1968) 69 Cal.2d 17, 25; *Professional Collection Consultants v. Lauron* (2017) 8 Cal.App.5th 958, 968 ["'The theory of an account stated is that it becomes a contract between the parties for payment of the amount computed to be due without proof of the specific items included therein.' [Citation omitted.] Accordingly, an action on an account stated is not based on the parties' original transactions, but on the new contract under which the parties have agreed to the balance due. [Citation omitted.]" (Emphasis added.).)

The allegations on which the account stated cause of action are based are that (1) Tank-Tek and Petro had a "long standing" relationship for Tank-Tek to perform subcontractor work (X-Compl. ¶ 5), (2) Tank-Tek was paid directly by Petro for that work (X-Compl. ¶ 6), and (3) the business relationship "has a long history of invoicing and payments" (X-Compl. ¶ 6). The specific allegations in the account stated cause of action are that the parties had an ongoing business relationship in which Tank-Tek acted as a subcontractor and Petro paid for its work, and there is an unpaid amount due of \$407,884.69 for which Tank-Tek has made demand for payment and Petro has not paid. (X-Compl. ¶¶ 16, 17.)

Omitted from the allegations supporting this cause of action are the essential allegations that a balance was struck and an agreement reached between Tank-Tek and Petro on the final balance due. (*Zinn, supra*, 271 Cal.App.2d at 600; *Maggio, Inc., supra*, 196 Cal.App.3d at 752-753; *Trafton, supra*, 69 Cal.2d at 25; *Professional Collection Consultants, supra*, 8 Cal.App.5th at 968.) Tank-Tek does not allege that it rendered a statement of the balance owing to Petro to which Petro agreed, expressly or impliedly, by failing to reply within a reasonable time. (*Id.*)

The general demurrer to the second cause of action for account stated is **SUSTAINED**. The Court need

not reach the special demurrer for uncertainty based on this ruling.

B. Open Book Account (3rd C/A)

"The elements of an open book account cause of action are: '1. That [plaintiff] and [defendant] had financial transactions . . . ; [¶] 2. That [plaintiff] . . . kept [an] account of the debits and credits involved in the transactions; [¶] 3. That [defendant] owes [plaintiff] money on the account; and [¶] 4. The amount of money that [defendant] owes [plaintiff].' [Citation omitted.]" (*State Comp. Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449.) A "book account" is defined in Code of Civil Procedure section 337a as "a detailed statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation, and shows the debits and credits in connection therewith, and against whom and in favor of whom entries are made, is entered in the regular course of business as conducted by such creditor or fiduciary, and is kept in a reasonably permanent form and manner and is (1) in a bound book, or (2) on a sheet or sheets fastened in a book or to backing but detachable therefrom, or (3) on a card or cards of a permanent character, or is kept in any other reasonably permanent form and manner." (Code Civ. Proc. § 337a(a) [emphasis added].)

"A 'book account' is defined as a ' "detailed statement, kept in a book, in the nature of debit and credit, arising out of contract or some fiduciary relation." It is, of course, necessary for the book to show against whom the charges are made. . . . It must also be made to appear in whose favor the charges run.' [Citations omitted.] A book account may furnish the basis for an action on a common count ' " . . . when it contains a statement of the debits and credits of the transactions involved completely enough to supply evidence from which it can be reasonably determined what amount is due to the claimant." ' [Citations omitted.] A book account is described as 'open' when the debtor has made some payment on the account, leaving a balance due. [Citation omitted.]" (*Interstate Group Adm'rs v. Cravens* (1985) 174 Cal. App. 3d 700, 708.)

"Examples of statements held to be book accounts include a law firm's billing statements reflecting work performed on an hourly basis [citation omitted] and a ledger sheet recording amounts due for hay deliveries [citation omitted]. A book account is 'open' where a balance remains due on the account. [Citations omitted.] 'An express contract, which defines the duties and liabilities of the parties, whether it be oral or written, is not, as a rule, an open account.' [Citation omitted.] However, the parties may agree to treat money due under an express contract, such as a lease, as items under an open book account. [Citation omitted.] '[I]n such a case the cause of action is upon the account, not under the [express contract].' [Citation omitted.]" (*Professional Collection Consultants, supra*, 8 Cal.App.5th at 969.)

The allegations supporting this cause of action include the same general allegations of a "long standing" relationship and long history of invoicing. (X-Compl. ¶¶ 5, 6.) Tank-Tek makes the same specific allegations in this cause of action of an ongoing business relationship with Petro for Tank-Tek's work as a subcontractor and Petro paying for the work. (X-Compl. ¶ 19.) Tank-Tek adds that there "remains a book account open" for \$407,884.69 owed and unpaid despite Tank-Tek's demand to Petro.

Tank-Tek has not alleged facts meeting the definition of an open book account under Civil Code section 337a to state the cause of action, including any allegation that Tank-Tek has maintained a "detailed statement" that is the primary record the transactions between the parties showing the

"debits and credits" in regard to their transactions that is kept in a "reasonably permanent form." (Civ. Code § 337a(a).) To the contrary, Tank-Tek's allegations appear to support the inference that Tank-Tek merely issued specific invoices for the work it performed for Petro. (X-Compl. ¶ 6 ["long history of invoicing and payments"].) Tank-Tek has not alleged the essential element of this cause of action that it kept an account of debits and credits involved in the transactions between the parties. (*State Comp. Ins. Fund, supra*, 50 Cal.App.5th at 449.)

The general demurrer to the third cause of action is **SUSTAINED**. The Court need not reach the special demurrer for uncertainty based on this ruling.

C. Unjust Enrichment (5th C/A)

Petro asserts that there is no independent claim for unjust enrichment under California law, but that unjust enrichment is founded on common law principles of restitution that a party should return a benefit received if retention of the benefit would leave the party unjustly enriched. Petro acknowledges the restitution is a remedy typically for a quasi-contract cause of action.

Though Petro argues that Tank-Tek does not plead this cause of action as a quasi-contract claim, Tank-Tek has alleged a quasi-contract claim in its fourth cause of action seeking recovery for the value of goods and services Tank-Tek performed for Petro's clients. (X-Compl. ¶¶ 22-24.) Petro did not demur to that cause of action, and the allegations of that cause of action are expressly incorporated into the fifth cause of action (X-Compl. ¶ 25), providing a foundation for the claim for unjust enrichment/restitution.

The general demurrer to the fifth cause of action is **OVERRULED**.

Conclusion and Ruling

The Court finds that Tank-Tek may be able to amend the second and third causes of action to state those claims. Therefore, the general demurrers to the second and third causes of action are **SUSTAINED, WITH LEAVE TO AMEND**. The general demurrer to the fifth cause of action is **OVERRULED**.

15. 9:00 AM CASE NUMBER: C26-00467
CASE NAME: PETRO-ANALYTICAL, INC., VS. TANK-TEK ENVIRONMENTAL CORPORATION,
***HEARING ON MOTION IN RE: SEVER XC OF TANK-TEK ENVIRONMENTAL CORPORATION**
FILED BY: PETRO-ANALYTICAL, INC.,
TENTATIVE RULING:

Before the Court is a motion by cross-defendant Petro-Analytical, Inc. to sever the cross-complaint of Tank-Tek Environmental Corporation from the complaint. For the reasons set forth, the motion to sever is **DENIED, WITHOUT PREJUDICE** as stated below.

Background

Plaintiff and cross-defendant Petro-Analytical, Inc. ("Petro") filed a complaint against defendant and cross-complainant Tank-Tek Environmental Corporation ("Tank-Tek") for breach of contract and an accounting arising out of a written Gross Profit and Revenue Sharing Agreement. (Compl. ¶ 6.) Petro alleges Tank-Tek agreed to invoice clients referred to Tank-Tek by Petro, collect the invoices, and remit a share of the profits to Petro. (Compl. ¶ 7.) Petro alleges that Tank-Tek owes Petro

\$214,088.07 for invoices through December 11, 2025 but claims damages for breach of the agreement estimated to be over \$500,000. (Compl. ¶¶ 10, 20.)

Tank-Tek filed a cross-complaint against Petro, alleging five causes of action. Tank-Tek alleges it had a "long-standing business relationship" with Petro, and that it had an oral contract with Petro to act as Petro's subcontractor for underground storage tank inspection, compliance and repairs. (X-Compl. ¶ 5.) It alleges that within the last two years, there was an accrued amount owing to Tank-Tek of \$407,884.69. (X-Compl. ¶¶ 5, 6, 8, 10, 13.) Though the cross-complaint refers to the profit sharing agreement alleged in the Petro complaint, Tank-Tek does not base its claims for relief on the profit sharing agreement. (Compare X-Compl. ¶ 7 to X-Compl. ¶¶ 5, 6, 8, 10, 13, and others.)

Legal Authority for Motion to Sever or Alternative Relief Sought by Petro

Petro's motion is made on the authority of Code of Civil Procedure section 1048(b). That statute provides that the trial court "in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." (Code Civ. Proc. § 1048(b).) Notably, the term "sever" no longer appears in Code of Civil Procedure section 1048(b); the term was removed from the statute in 1971, and the statute "no longer authorizes severance of a civil action." (*Morehart v. County of Santa Barbara* (1994) 7 Cal. 4th 725, 737 fn. 3.) Instead, the statute authorizes the court to order that causes of action be tried separately. (*Id.*) The Court interprets the motion as one to bifurcate and to order separate trials of the complaint and cross-complaint.

Among the goals sought to be achieved by bifurcation is limiting the risk of jury confusion, simplifying the presentation of evidence, and expediting the resolution of the case. (*Regents of Univ. of Cal. v. Shelly* (2004) 122 Cal.App.4th 824, 833; *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 888.) Whether to bifurcate and the manner in which to bifurcate a case for trial is within the trial court's discretion. (Code Civ. Proc. § 1048(b); *Grappo v. Coventry Financial Corp.* (1991) 235 Cal.App.3d 496, 504 [under Evidence Code section 320, and Code of Civil Procedure sections 598 and 1048(b), "trial courts have broad discretion to determine the order of proof in the interests of judicial economy."]; *Regents of University of California, supra*, 122 Cal.App.4th at 833.) The Court's authority to bifurcate is consistent with the trial court's inherent power to regulate the order of proof at trial and provide for the orderly conduct of the proceeding. (Code Civ. Proc. §§ 128(a)(3) and 187 ["all the means necessary to carry" out the court's jurisdiction "are also given" and "any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code."]; Evid. Code § 320 ["Except as otherwise provided by law, the court in its discretion shall regulate the order of proof."].)

Analysis

Petro moves for an order severing the cross-complaint for a separate trial. Alternatively, Petro asks for a series of orders, including ordering the parties to maintain separate accountings and ordering special verdict forms, bifurcation to try the complaint issues first, and certain jury instructions. (MPA ISO Mot. pp. 7-8.)

Petro argues that the complaint is based on a contract that is distinct and separate from the oral

contract for subcontractor work by Tank-Tek on which the claims alleged in the cross-complaint are based. Tank-Tek does not dispute that the contracts and transactions involved in the complaint are different from those involved in the cross-complaint, but Tank-Tek contends the actions should be tried together because the oral contract and related claims and transactions alleged in the cross-complaint are the basis for Tank-Tek's affirmative defense of offset.

This case has been pending for approximately seven months. The Court has concurrently sustained a demurrer to some of the causes of action of the cross-complaint, with leave to amend. The pleadings are not settled. A further case management conference is set for January 20, 2027. The claims alleged in the complaint and cross-complaint at least on their face do not appear to be particularly complicated, such that it is not clear that there would be confusion if the complaint and cross-complaint are not tried together. On this record, the Court has no information or evidence on this motion addressing the anticipated proof at trial, including whether the same fact witnesses will be appearing on the complaint and cross-complaint, whether or not there will be overlapping documentary evidence on the complaint and cross-complaint issues, whether the parties anticipate the need for expert witnesses, and if so, whether any experts would be expected to testify at trial on both the complaint and cross-complaint.

The Court finds that it is premature to determine whether bifurcation is appropriate to try the complaint separately from the cross-complaint and to order the complaint tried first. The Court also finds that the Court does not have a sufficient factual record or information at this early stage in the case to address procedures for any future trial, including verdict forms and jury instructions or the order of presentation of the claims and evidence. Petro's request to bifurcate the case to try the claims alleged in the complaint first may be appropriate, but the Court finds it is premature to determine the issues raised in the motion at this point.

Conclusion and Ruling

In the Court's discretion, the motion is **DENIED, WITHOUT PREJUDICE** to either party bringing a request for bifurcation or for orders regarding the presentation of claims and evidence in connection with any future trial setting or otherwise as appropriate as the case develops.

16. 9:00 AM CASE NUMBER: MSC22-00134
CASE NAME: RODRIGUEZ VS. STRONG
HEARING ON DEMURRER TO: 1ST AMENDED CROSS COMPLAINT
FILED BY:
TENTATIVE RULING:

Before the Court is a demurrer by cross-defendant Alberto Mendez to the first amended cross-complaint filed by cross-complainant Michelle Strong.

Background

This action involves disputes over the operation of a restaurant and brewery business in Martinez, now closed. In the main action in the currently operative first amended complaint, Plaintiff Juan Reynaldo Rodriguez has sued Michelle Strong, LaSalle Strong, and Rocksteady Brewery Co. On April 29, 2022, Michelle Strong and LaSalle Strong filed a cross-complaint against Juan Rodriguez. After Rocksteady was added as a defendant in the main action, Rocksteady filed a cross-complaint against

Michelle Strong and LaSalle Strong on November 18, 2025.

On December 23, 2025, Michelle Strong filed a first amended cross-complaint ("FACC") naming Juan Rodriguez, R&A Restaurant Group, LLC ("R & A Group"), and Alberto Mendez, erroneously named as Albert Mendez, as cross-defendants in the caption. The FACC alleges 12 causes of action. Alberto Mendez has filed a general demurrer to four of those causes of action.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court does not consider evidence outside the pleading, except matters subject to judicial notice. (*Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer must dispose of an entire cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

In determining whether the complaint states a cause of action, the Court evaluates "whether a cause of action has been stated under any legal theory. [Citation omitted.]" (*Gomez v. Regents of University of California* (2021) 63 Cal.App.5th 386, 391.) (*See also Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38 ["If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer."].) If there is a reasonable possibility of amendment to cure the deficiencies in a complaint, then leave to amend must be granted. (*Quelimane Co., supra*, 19 Cal.4th at 39.)

Strong's Request for Judicial Notice in Opposition to the Demurrer (Mistitled in the Caption as the Opposition)

Strong requests the Court take judicial notice of (1) a Statement of Information for Rocksteady Brewing Company filed on April 23, 2024 with the California Secretary of State listing Juan Reynaldo Rodriguez as Chief Executive Officer, Chief Financial Officer, and Alberto Mendez as Secretary; (2) a Statement of Information for R & A Restaurant Group, LLC filed on May 15, 2024 with the California Secretary of State listing Alberto Mendez as a manager or member and Juan R. Rodriguez as CEO and agent for service of process; and (3) records of the California Department of Alcoholic Beverage Control related to a transfer of a liquor license from Rocksteady Brewing Company to R & A Group, bearing a signature of Alberto Mendez and a date of June 10, 2024. (Strong RJN Exhs. A-C.)

Mendez objects to the Court taking judicial notice of the documents on the grounds they lack foundation as not authenticated by a declaration or submitted with a declaration as to their source. The documents are government records of which the Court can take judicial notice under Evidence Code section 452(c) as to their existence, subject to the limitations on the scope of judicial notice. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same].) The Court takes note of Mendez's objection that the Statements of Information are incomplete as they include only

"page 1 of 2," and the department of ABC documents do not include any file number. Nevertheless, both Statements of Information bear "filed" stamps, and the ABC documents are marked on each page "RECEIVED Jun 10, 2024 Dept. of Alcoholic Beverage Control Concord District Office." The Court finds the documents have sufficient indicia of authenticity and **GRANTS** the request, subject to the limitations in the case law noted above.

Procedural Issues on Cross-Complainant Strong's Papers

Pleadings filed with the Court are required to have page numbers at the bottom. (Cal. R. Ct., Rule 2.112.) The FACC has no page numbers, a defect which should be corrected in any amended pleading Strong may file.

Strong's original opposition to the demurrer was untimely by one day. The original hearing date on the demurrer was set for August 17, 2026, and Strong filed her opposition on August 5, 2026 instead of August 4, 2026, which was nine court days prior to the hearing. (Code Civ. Proc. § 1005(b).) The opposition was late in violation of the Code of Civil Procedure.

Strong's supplemental opposition exceeds 10 pages but does not include the tables of contents and authorities required for a brief longer than 10 pages. (Cal. R. Ct., Rule 3.1113(f) ["memorandum that exceeds 10 pages must include a table of contents and a table of authorities"].)

The Court also has **no proof of service on file** showing that Strong served **any** of her opposition pleadings on the other parties. Mendez's current counsel filed a declaration with the original reply declaring that as of August 10, 2026, the predecessor counsel had not received service of Strong's opposition papers. (Hirsch Reply Decl. ¶¶ 5-9 filed 8/10/2026.) The failure to file proofs of service showing service of the opposition documents, and more important, the failure by Strong to actually serve her papers on the other parties, also violate the applicable rules. (Code Civ. Proc. §§ 1005(b) and 1005(c) [opposition deadlines and requirements for service of opposition papers]; Cal. R. Ct., Rule 1.21 [service of documents and filing proofs of service].) Proofs of service are necessary for the Court to ensure the other parties have received copies of the documents filed with the Court, that the documents were served in accordance with the applicable procedural requirements such as Code of Civil Procedure section 1005(c) which requires opposition and reply papers to be served by overnight mail, electronic mail, or other expeditious means as stated in the statute, and as a matter of due process.

Nevertheless, Mendez filed a full reply on the merits, and the Court continued the hearing on the demurrer for supplemental briefing as set forth in the Court's August 17, 2026 tentative ruling adopted by the Court. The Court does not find that Mendez has been prejudiced by the late and apparently unserved opposition under the circumstances and will consider the opposition papers.

Plaintiff as a self-represented party is required to comply with the applicable rules and procedures like any other litigant. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.) Though the Court has considered the opposition and supplemental opposition despite the procedural violations noted above, **Strong is cautioned that the Court expects compliance with the applicable rules and procedures in future filings.** Future noncompliance may result in the Court not considering Strong's noncompliant filings.

Procedural Defects in the Notice of Demurrer Addressed by Continuance and Opportunity for Supplemental Briefing

The notice of demurrer states Mendez is making general demurrers to three causes of action: conversion (4th Cause of Action), declaratory relief (10th Cause of Action), and injunctive relief (12th Cause of Action). (Not. of Dem. p. 2, ll. 10-15.) The "Demurrers" on the ensuing page, however, list general demurrers to four causes of action, the three listed above plus a general demurrer to the eighth cause of action for intentional interference with economic advantage. The memorandum in support of the demurrer similarly addresses in the introduction only the fourth, tenth, and twelfth causes of action as subject to the demurrer. (MPA p. 2, ll. 8-10 and 13-15.) Yet, later in the brief, Mendez challenges the sufficiency of the allegations of the eighth cause of action. (MPA pp. 4-5.)

The manner of notice and presentation of the demurrers and supporting argument raised questions as to whether cross-complainant was given adequate notice that Mendez was challenging the eighth cause of action. Her initial opposition did not address the demurrer to the eighth cause of action.

The Court's August 17, 2026 tentative ruling raised this concern, and the Court continued the hearing for more than 30 days and allowed a supplemental opposition and supplemental reply. The parties filed supplemental papers, and the Court will therefore address demurrers to the four causes of action.

Analysis

The FACC alleges 12 causes of action. Mendez makes general demurrers to four causes of action (4th, 8th, 10th, 12th).

A. Conversion (4th Cause of Action)

To state a cause of action for conversion, Plaintiff must plead three elements: "(1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages." (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240 [emphasis added, quoting *Welco Electronics, Inc. v. Mora* (2014) 223 Cal.App.4th 202, 208].) A claim for conversion of money can be stated if " 'a specific sum capable of identification is involved.' [Citation omitted.]" (*Voris v. Lampert* (2019) 7 Cal.5th 1141, 1151.) (*See also Weiss v. Marcus* (1975) 51 Cal.App.3d 590, 599.) " 'To establish a conversion, plaintiff must establish an actual interference with his ownership or right of possession.' [Citation omitted.] To do so, the plaintiff must have 'either ownership and the right of possession or actual possession [of the property] at the time of the alleged conversion thereof.' [Citation omitted.]" (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 232-233 [emphasis added, quoting *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 610 and *General Motors A. Corp. v. Dallas* (1926) 198 Cal. 365, 370].)

Paragraph 4 on PDF page 4 of the FACC includes the following allegations in support of the conversion cause of action: "Defendants [sic] wrongfully took possession of Rocksteady Brewing Company's assets, equipment, goodwill, and use of its liquor license without Strong's consent. They continue to use these assets for profit while refusing to repay debts owed to Strong. This wrongful taking and continued control constitutes conversion. Strong seeks compensatory damages, punitive damages, and return of her property interest." (Emphasis added.) Cross-complainant does not incorporate by reference any of her preceding allegations, such that the single paragraph quoted above has the only

allegations supporting the conversion..

1. Failure to Make Any Allegations Against Mendez in the FACC to State Causes of Action Against Him

Mendez is named in the caption of the FACC, and Strong also alleges in paragraph 3 on PDF page 2 of the FACC that cross-defendant Rodriguez "acted without legal authority to remove her as agent and CEO and formed a new LLC, R & A Restaurant Group, LLC, with Albert Mendez, into which he [Rodriguez] transferred Rocksteady's assets without Strong's consent, while outstanding debts and wages remained unpaid." There is no allegation in the FACC identifying Mendez as a cross-defendant or making any specific allegations of wrongdoing against him, only the single passing reference quoted above. Mendez correctly points out that the caption of the cross-complaint is not part of any cause of action alleged. (*Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 829 [setting aside default judgment as void where defendant mentioned only in the caption of the complaint but was "nowhere mentioned in the body of the complaint" such that the complaint alleged no facts or cause of action against that defendant].) Even paragraph 4 on PDF page 4 only generically alleges that "defendants" converted Rocksteady's assets without naming Mendez, nor is the allegation that Rodriguez formed a new entity and transferred Rocksteady's assets to the new entity an allegation against Mendez.

2. Lack of Standing Regarding Conversion of Corporate Assets

Even if the Court considered the allegations that precede the conversion cause of action as being part of that cause of action, cross-complainant alleges in paragraph 1 of the FACC that Rocksteady Brewing Company is a California corporation. (FACC ¶ 1.) The conversion cause of action alleges that the "defendants [sic]" took possession of the assets of Rocksteady. Strong's conversion claim is based on injury to Rocksteady by defendants' allegedly taking possession of the corporation's assets.

Assets of a corporation are owned by the corporation; the individual shareholders/owners of the corporation have an ownership interest in their shares of the corporate entity but do not have any direct ownership interest or right to possession of the corporate assets. (See, e.g., *Pacific Lumber Co. v. Superior Court* (1990) 226 Cal.App.3d 371, 375 ["It is fundamental that a shareholder owns no part of the specific property of the corporation." [Citations omitted.]].) If corporate assets are transferred improperly, the corporation is injured. (*NNN Capital Fund I, LLC v. Mikles* (2026) 119 Cal.App.5th 1200, 1212, review granted 8/12/2026, S296822 [citable pending review under Cal. R. Ct., Rule 8.1115(e)(3)]; *Schrage v. Schrage* (2021) 69 Cal.App.5th 126, 149 ["[W]here a cause of action seeks to recover for harms to the corporation, the shareholders have no direct cause of action and '[b]ecause a corporation exists as a separate legal entity' [citation omitted] and 'is the ultimate beneficiary of such a derivative suit' [citation omitted]."]].)

When the gravamen of the claim alleged is one of injury to the corporation, the corporation has to maintain the suit for remedial action, or a shareholder may bring a **derivative** action on behalf of the corporation if appropriate. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 127.) (See also *NNN Capital Fund I, LLC, supra*, 119 Cal.App.5th at 1212; *Denevi v. LGCC, LLC* (2004) 121 Cal.App.4th 1211, 1216 fn. 3 and 1222 ["The claims are derivative where the injury alleged is one inflicted on the corporate entity or on the 'whole body of its stock.' [Citation omitted.]].])

These standing rules, and the requirement of a shareholder derivative action in order for an individual shareholder to pursue claims for injury to the corporation applies even when the corporation has only

two shareholders. (*Nelson, supra*, 72 Cal.App.4th at 127 ["Whether there is one minority shareholder or many, an action is individual only if the stock of the individual plaintiff or plaintiffs is the only stock affected adversely. [Citation omitted.] Here, the corporation lost earnings, profits, and opportunities, rendering all the shares valueless. When the injury is to the 'whole body of stock,' the action must be derivative. [Citation omitted.]"].) Claims must be brought by the real party in interest, and standing is an essential element of a cause of action. (Code Civ. Proc. § 367; *Schrage, supra*, 69 Cal.App.5th at 150-151.) Strong has not alleged facts in the FACC giving her standing to assert a claim for conversion of assets which she herself has alleged belonged to Rocksteady.

Cross-complainant may have basis for bringing a derivative action for recovery of the corporate assets for the benefit of the corporation based on her allegations in paragraph 4 on PDF page 4 of the FACC. She may also be able to allege claims for injury she suffered individually and not merely as a shareholder of Rocksteady, but the FACC does not make those factual allegations in its current form.

3. Individual Injury

Strong makes of a number of statements regarding the injury she contends she personally suffered at page 4, l. 1 – p. 5, l. 5 of her supplemental opposition, none of which are supported by citations to any pages or paragraphs of the FACC where these facts are alleged. She also does not explain how the facts she argues mean that she **individually** has a claim for **conversion of Rocksteady's** assets, which is what she has alleged in the fourth cause of action. That Rocksteady, the corporation entity, may have been left with unpaid wage claims and debts that were unsatisfied does not allege facts that show Strong individually suffered injury, rather than Rocksteady as an entity. To the extent Strong contends that she and other creditors of Rocksteady were injured by the depletion of Rocksteady's assets, because Rocksteady did not have assets available to satisfy claims they may have against Rocksteady, creditors may have claims arising out of the transfer of Rocksteady's assets that rendered it insolvent, but Strong has cited no authority that those facts give rise to a claim by such a creditor for conversion of assets belonging to the corporation Rocksteady, particularly in light of the authorities cited above. (FACC ¶ 3, PDF p. 2.)

Strong argues that Rodriguez entered into a new lease after an unlawful detainer was commenced under the Rocksteady lease, and that this fact may show she sustained some individual injury. Strong does not explain how that injury supports a claim for **conversion** against Mendez based on Rodriguez allegedly ceasing rent payments under the lease, and she does not allege facts explaining how she would have continued to have a right to ownership or possession of the lease despite the nonpayment so as to support the first element of conversion.

Strong also raises arguments focused on allegations made by Rodriguez in his first amended complaint, and citing an exhibit to his first amended complaint with a partnership agreement between Strong and Rodriguez **which Strong explicitly disavows**. (Suppl. Opp. p. 5.) She does not explain how the arguments demonstrate the elements of a claim for conversion (or any of the other causes of action subject to the demurrer) are adequately alleged in the FACC.

More important, the alternative partnership theory she addresses in that portion of her supplemental brief is not alleged in her FACC, nor does her supplemental opposition cite any provision of the FACC where any of the facts she raises appear. In any event, Strong cannot rely on facts in the Rodriguez first amended complaint to make her FACC legally sufficient to state claims against Mendez. (*Westamerica Bank v. MBG Industries, Inc.* (2007) 158 Cal.App.4th 109, 134 {"A complaint and a

cross-complaint are, for most purposes, treated as independent actions.' [Citations omitted.] A cross-complaint is generally considered to be a separate action from that initiated by the complaint. [Citations omitted.] A cross-complaint is a separate pleading and represents a separate cause of action from that which may be stated in the complaint, and must be complete and sufficient by itself without aid of the averments of the answer. [Citations omitted.] [¶] 'Where there are both a complaint and a cross-complaint there are actually two separate actions pending and the issues joined on the cross-complaint are completely severable from the issues under the original complaint and answer. [Citations.]' [Citation omitted.]")

The Court **SUSTAINS, WITH LEAVE TO AMEND**, the Mendez general demurrer to the fourth cause of action on these grounds. The Court need not reach any other grounds Mendez may have raised. Leave to amend shall include the right to amend to state this cause of action as a derivative cause of action on behalf of Rocksteady and/or to state a cause of action for individual injury, if Strong can allege such an individual claim consistent with the legal authorities cited above.

B. Intentional Interference with Prospective Business Advantage (8th Cause of Action)

The elements of this cause of action were addressed by the California Supreme Court in *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134. They are: " '(1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant.' [Citations.]" (*Id.* at 1154 [quoting *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 521-522].) (See also *Della Penna v. Toyota Motor Sales, U.S.A., Inc.* (1995) 11 Cal.4th 376, 393 [listing similar components as seven elements].) A claim for interference with prospective business advantage, as distinguished from interference with contractual relations which is based on interference with an existing contract, requires the plaintiff (or cross-complainant in this case) to plead and prove " 'that the defendant's interference was wrongful 'by some measure beyond the fact of the interference itself.' [Citation omitted.]" (*Della Penna, supra*, 11 Cal.4th at 392-393.)

1. Lack of Allegations Against Mendez

As stated above, Strong makes a passing reference in paragraph 3 on PDF page 2 of the FACC that Rodriguez created a limited liability company with Mendez. The only allegation in the FACC on which the cause of action is based states, "Strong had a legitimate business expectancy in continuing to operate the restaurant or recover her investment. Defendants [sic] intentionally interfered with this by transferring the business, removing Strong, and damaging her reputation. Strong seeks compensatory and punitive damages." (FACC ¶ 8, PDF p. 5.) Though Strong has titled the claim one for interference with prospective business advantage, the allegations could be construed as alleging interference with her existing contractual relationship with Rocksteady and her investment in that entity, which would not require allegations of a wrongful act independent of the interference.

Nevertheless, the allegations are not sufficient to allege a claim against Mendez as he is not alleged to be a cross-defendant in the text of the FACC, and the eighth cause of action does not allege and incorporate any prior allegations of the FACC. Even if the Court considered the passing reference to Mendez in paragraph 3 on PDF page 2, that reference only alleges that Rodriguez created the new LLC

with Mendez. (*Falahati, supra*, 127 Cal.App.4th at 829.) Strong's other allegations allege Rodriguez engaged in the asset transfers and other misconduct.

2. Insufficient Allegations to State the Cause of Action

Strong does not allege any facts regarding Mendez's knowledge of her contractual relationships or prospective business advantage that is the subject of this cause of action, or that Mendez engaged in any intentional acts designed to disrupt the contractual relations or prospective business advantage, and that Mendez's acts actually disrupted the business relationship, causing damages. Merely alleging that Mendez entered into an LLC agreement with Rodriguez and that assets of Rocksteady end up being transferred to the R & A Group by Rodriguez (see FACC ¶¶ 3 and 6, PDF p. 2) is not sufficient to state the elements of the cause of action against Mendez. (*Korea Supply, supra*, 29 Cal.4th at 1154.)

Strong points to the Statements of Information which identify Mendez as an officer of Rocksteady and as a member or manager of R & A Group, and the Department of Alcoholic Beverage Control documents which mention Mendez. Even if the Court considers that Mendez's name appears in those documents, the documents do not make the FACC legally sufficient. Moreover, the documents are neither alleged nor attached to the FACC. At most, the documents may support a showing by Strong that she may be able to amend the FACC to allege more facts that might allow her to plead this cause of action sufficiently.

3. Corporate Injury or Individual Injury

Strong also contends that she can allege facts showing there were prospective purchasers of Rocksteady that she referred to Rodriguez. She asserts she informed Rodriguez "about the prospective buyers and sale opportunities." (Suppl. Opp. p. 9.) The arguments raise issues as to whether the claim Strong is alleging in this cause of action is for damage to **Rocksteady** arising out of Mendez and Rodriguez interfering with **Rocksteady's** prospective business advantage in the potential sale of the business to third parties. That claim would be a derivative claim addressing injury to the corporation Rocksteady. Under the authority cited above, injuries to the corporation are not ones that Strong can pursue herself but only in a derivative claim, which is another ground to sustain the demurrer to this cause of action unless Strong can allege facts that support that she has an individual claim for interference with contractual relations or prospective business advantage. (*Schrage, supra*, 69 Cal.App.5th at 149; *Nelson, supra*, 72 Cal.App.4th at 127.)

The general demurrer to the eighth cause of action is **SUSTAINED, WITH LEAVE TO AMEND**. Leave to amend shall include the right to amend to try to state this cause of action as a derivative claim for injury to Rocksteady and/or as an individual claim for injury to Strong for interference with prospective business advantage and/or contractual relations, to the extent Strong can allege facts to support any of such claims. The Court does not take Strong's arguments that she needs discovery as foreclosing her ability to amend this cause of action.

C. Declaratory Relief (10th Cause of Action)

Code of Civil Procedure section 1060 provides that a "person interested . . . under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property . . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction

or validity arising under the instrument or contract." (Code Civ. Proc. § 1060 [emphasis added].)

Strong alleges this cause of action as a single paragraph, without incorporating any of the preceding allegations, stating "An actual controversy exists between Strong and Defendants [sic] concerning ownership rights and obligations under the business arrangement. Strong requests the Court issue a declaration of her rights in Rocksteady Brewing Company and/or its successor business." (FACC ¶ 10, PDF p. 5.) As in the case of the fourth and eighth causes of action, without allegations made against Mendez, including an allegation in the text of the FACC naming him as a cross-defendant, Strong has not alleged facts to state a declaratory relief claim against Mendez. (*Falahati, supra*, 127 Cal.App.4th at 829.)

Code of Civil Procedure section 1060 allows a party to ask for a declaration of "rights or duties with respect to another, or in respect to, over, or upon property" where an actual controversy exists between parties with competing positions or interests in that regard. Strong alleges there is a controversy over "ownership rights and obligations," which may meet the requirement of section 1060. In addition to the lack of allegations against Mendez though, the Court also finds the allegation that the controversy concerns "the business arrangement" to be so uncertain and ambiguous in the context of the two different businesses Strong has made allegations about as to provide an additional ground for sustaining a general demurrer to this cause of action.

The demurrer to the tenth cause of action is **SUSTAINED, WITH LEAVE TO AMEND.**

D. Injunctive Relief (12th Cause of Action)

Strong alleges in a single paragraph, that "Defendants [sic] continue to use Rocksteady's assets, including the liquor license, without legal authority or Strong's consent. Strong seeks a preliminary and permanent injunction barring them from further use of those assets and license pending resolution of this case." (FACC ¶ 12, PDF p. 6.) Strong does not incorporate any prior allegations of the FACC into this cause of action.

As in the case of the other three causes of action, to the extent the claim for injunctive relief could be considered a cause of action, Strong has not made allegations against Mendez in the body of the FACC, naming him as a cross-defendant and alleging acts and omissions by Mendez that provide a basis for her to make claims against him. These two defects warrant sustaining the demurrer.

Mendez points out that Strong has alleged that the Rocksteady assets were transferred to R & A Group, not to Mendez individually. Nevertheless, that fact does not mean that injunctive relief could not be available against Mendez as a person affiliated with R & A Group who may be able to control that entity's use or disposition of the Rocksteady assets transferred to R & A Group or as a person acting in concert with that entity that may be within the proper scope of injunctive relief.

Strong herself seems to recognize that injunctive relief is a remedy, not a cause of action. (*See, e.g., Allen v. City of Sacramento* (2015) 234 Cal. App. 4th 41, 65 ["Injunctive relief is a remedy, not a cause of action. [Citations omitted.] A cause of action must exist before a court may grant a request for injunctive relief. [Citations omitted.], finding trial court could properly sustain demurrer to injunctive relief cause of action on that ground]; *Camp v. Board of Supervisors* (1981) 123 Cal.App.3d 334, 356 [same].) She argues that she should be allowed to allege a right to injunctive relief as part of her prayer for relief, which the Court will allow her to do as part of any amended pleading she may file, and with the understanding that to obtain injunctive relief against Mendez, there must be a cause of

action for which injunctive relief can properly be granted.

The demurrer to the twelfth cause of action is **SUSTAINED, WITHOUT LEAVE TO AMEND** this cause of action as a cause of action for injunctive relief, but **WITH LEAVE** for Strong to include injunctive relief in her prayer for relief.

E. Supplemental Opposition Request Concerning Existing Defaults

In her supplemental opposition, Strong raises the issue of existing defaults she has taken against other cross-defendants. She cites cases that support that making substantive amendments to a complaint or cross-complaint that affect a defaulted defendant may open the defaulted defendant's default and require new service of the amended pleading on that defendant (or in this case cross-defendant). (Suppl. Opp. p. 12, citing *Ostling v. Loring* (1994) 27 Cal.App.4th 1731, 1743 and *Pattera v. Hansen* (2021) 64 Cal.App.5th 507.) The Court in *Pattera* stated the rule that, "After a defendant's default has been entered, if 'a complaint is amended in matter of substance as distinguished from mere matter of form, the amendment opens the default, and unless the amended pleading be served on the defaulting defendant, no judgment can properly be entered on the default' ' and any judgment is thus void. [Citations omitted.]" (*Pattera, supra*, 64 Cal.App.5th at 529.)

The Court will not "order" that any amendments Strong desires to make in light of this ruling shall be limited to allegations necessary to state her claims against Mendez, nor can the Court pre-determine whether the amendments Strong may make in any amended pleading in light of the Court's ruling do not materially change her allegations or claims against the other cross-defendants. That relief is not within the scope of the Court's role in ruling on the demurrers by Mendez.

Conclusion and Ruling

Mendez's general demurrers to the fourth, eighth, and tenth causes of action are **SUSTAINED, WITH LEAVE TO AMEND as stated above**. Mendez's general demurrer to the twelfth cause of action is **SUSTAINED, WITHOUT LEAVE TO AMEND**, but Strong may amend to add injunctive relief to her prayer for relief in any amended pleading she may file. In any amended pleading, when Strong refers to the cross-defendants subject to any amended cross-complaint she may file, Strong should refer to that party as a "cross-defendant" and not a defendant to avoid confusion.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C23-02013
CASE NAME: DENNIS SANFORD VS. CHANNEL LUMBER CO.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION TESTIMONY**
FILED BY: CHANNEL LUMBER CO.
TENTATIVE RULING:

This hearing date was initially set on defendants' motion to Compel further deposition testimony by GRS Funding, Inc. The hearing was advanced and a ruling made. See Order entered June 24, 2026. This hearing date is VACATED.

18. 9:01 AM CASE NUMBER: C24-02971
CASE NAME: ROBERT HARELSON, II VS. ROBERT HARELSON
***HEARING ON MOTION FOR DISCOVERY TO COMPEL DEFENDANT ROBERT W. HARELSON'S**
DEPOSITION AND ANSWERS TO DEPOSITION QUESTIONS
FILED BY: HARELSON, ROBERT J, II
TENTATIVE RULING:

Plaintiff Robert J. Harelson II ("Plaintiff") filed a motion to compel Robert W. Harelson's ("Defendant") further deposition testimony and request for sanctions on June 11, 2026 (the "Motion to Compel Further Deposition"). The Motion to Compel Further Deposition was set for hearing on September 21, 2026. The motion is opposed.

Background

Plaintiff served an Amended Notice of Deposition on Defendant on March 23, 2026. See Declaration of Craig A. Diamond filed June 11, 2026 (the "Supporting Declaration"), ¶4 and **Exhibit B** thereto. This notice identified 28 requests for production (the "Requests"). *Id.*

Most of the Requests seek broad categories of document production. Supporting Declaration, **Exhibit B**. Many contained multiple subparts, while others are extraordinarily broad and impermissibly vague. See e.g. Request No. 28 ("All Documents reflecting any effort to rewrite history, including ..."), Supporting Declaration, **Exhibit B**.

Plaintiff complains that "more than 1,700 pages of documents" were produced at the deposition which were not identified by request number "as required" under the discovery statutes. Plaintiff seeks an order compelling Defendant to sit for a further deposition so that Defendant can be further examined about the documents produced.

Sanctions in the amount of \$2,958.00 are also requested.

Opposition papers were filed on September 8, 2026.

Reply papers were filed on September 10, 2026.

Analysis

A motion to compel further deposition testimony must be accompanied by a declaration under Code of Civil Procedure section 2016.040. Code Civ. Proc. § 2025.450(b)(2) and 2025.480(b).

Code of Civil Procedure section 2016.040 mandates that “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, **either in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion.” Code Civ. Proc. § 2016.040(a) (emphasis added).

Plaintiff’s motion is procedurally defective because no declaration was provided showing that any meet and confer efforts occurred in person, by telephone, or by videoconference. **The only meet and confer efforts referenced were by written correspondence.** The moving party describes email correspondence and attached a meet and confer sent to the other side before the motion was filed. See Supporting Declaration, ¶5 and **Exhibit C** thereto.

To the extent that Plaintiff’s motion turns on any asserted deficiency in the manner of the responding party’s production of documents in response to the subject document production requests, the motion is also procedurally deficient because of the failure to file a Separate Statement. See Rule 3.1345(a)(4) and (5) of the California Rules of Court (CRC).

For these reasons alone, the motion must be denied.

Nonetheless, even if not procedurally defective, the Court would deny the motion.

Defendants contend the 1,700+ pages of documents at issue were produced more than a week before the deposition on May 19, 2026. See Declaration of Melisa Recendez filed September 8, 2026 (“Opposition Declaration”) ¶20 (“...Defendants explained that the ‘discovery dump’ of 1,705 pages were produced ahead of the deposition were identical to the documents produced in discovery on May 11, 2026.”) and ¶24.

Plaintiff asserts that the documents did not arrive until the day of the deposition, in the form of a mailed thumb drive. See Supporting Declaration, ¶9.

Nonetheless, Plaintiff’s counsel was plainly advised as early as May 11, 2026 that the documents were en route on a thumb drive. See Opposition Declaration, ¶7 and **Exhibit 5** thereto, Email dated May 11, 2026 at 2:46 pm (“A flash drive with the produced documents is also being mailed to your office.”).

If more time were needed because that was a problem and the thumb drive would not arrive sufficiently in advance of the deposition to review them, Plaintiff could have requested a continuance of the deposition. Yet, Plaintiff elected to proceed with the deposition.

Perhaps more importantly, Plaintiff ignores the obvious. There is simply no obligation to produce documents demanded in a deposition notice in advance of a deposition. Rather, the documents must be produced at the deposition. Code Civ. Proc. §§ 2025.220 and 2025.280; see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”) § 8:521-8:521.1. Indeed, Weil & Brown cautions against seeking production of documents by deposition notice if the documents are anticipated to be voluminous. *Id.* at § 8:521.1.

In addition, the Court has considered and rejects the contentions that manner of production of the documents at the document somehow requires the relief sought. First, the motion is procedurally defective to the extent such an argument is made by Plaintiff, as noted above. To the extent that Plaintiff seeks to rely on arguments about the nature and manner of responses to particular document production requests or the insufficiency of any particular answers by the deponent, a Separate Statement is required. CRC 3.1345(a)(4) and (5). No such Separate Statement was ever filed by Plaintiff.

Even if the Court were inclined to embark on evaluating the sufficiency of the responses to the document production requests, it is evident that, as noted above, many of the requests themselves were substantially overbroad and, therefore, improper. Code Civ. Proc. § 2025.220(a)(4) (deposition notice

must specify “with **reasonable particularity** of any materials or category of materials, including any electronically stored information, to be produced by the deponent”); see Weil & Brown, § 8:523.

Even if the requests were all proper, the provision of the Code of Civil Procedure cited by Plaintiff, Section 2025.280, does not require that documents produced at a deposition, pursuant to a notice of deposition, be organized in any particular manner, other than to require that a party producing ESI must provide “a means of gaining direct access to, or a translation into a reasonably usable form of, any electronically stored information that is password protected or otherwise inaccessible.” See Code Civ. Proc. § 2025.280.

Plaintiff’s brief states:

Code of Civil Procedure § 2025.280 requires: “Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.”

See Plaintiff’s Memorandum of Points and Authorities filed June 11, 2026, p. 6, Ins. 5-7.

Code of Civil Procedure section 2025.280 contains no such language. Plaintiff is admonished for misrepresenting the language of the statute.

Accordingly, the Court does not find any grounds to compel a further deposition by Defendant.

Lastly, the Court notes that the record provided on this motion demonstrates instances of inappropriate and unprofessional conduct on the part of the examining attorney, Craig A. Diamond. Counsel is admonished to refrain from such conduct in the future. See e.g. Transcript of Videotape Zoom Deposition of Robert W. Harelson, 163:18-20 (“Q why don't you weigh in as a trustee? [¶] A I'm a dad. [¶] Q Barely.”), Opposition Declaration, **Exhibit 9**.

Sanctions

The moving party persisted in prosecuting the Motion to Compel Further Deposition without substantial justification based upon procedurally defective moving papers.

The Court finds that the moving party’s conduct constituted making a motion to compel discovery unsuccessfully and without substantial justification, pursuant to Code of Civil Procedure section 2023.010(h).

The Court finds that the foregoing conduct by the moving party constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

In unsuccessfully making this motion, the Court finds that the moving party did not act with substantial justification. Nor does the Court find any other circumstances make the imposition of monetary sanctions unjust.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Further Deposition is **DENIED**.
2. **Determination of Monetary Sanctions.** In order to assess and fix the reasonable expenses, including attorney’s fees or other costs, incurred by Defendant as a result of the foregoing conduct by the moving party (the “Monetary Sanctions”), the Court makes the following orders:
 - a. **Defendant’s Supplemental Declaration regarding Monetary Sanctions.** Within **thirty**

(30) days of notice of entry of this order, Defendant shall file and serve a declaration signed under penalty of perjury setting forth any and all reasonable expenses, including attorney's fees or other costs, incurred by Defendant as a result of the above discovery misconduct (the "Supplemental Declaration regarding Monetary Sanctions"). Such submittal shall include any supporting billing statements.

- b. **Contents and Length of Supplemental Filing.** Defendant's Supplemental Declaration regarding Monetary Sanctions shall not exceed 5 pages, excluding any evidentiary attachments such as supporting attorney billing statements or other documentation of reasonable expenses. Any redaction of billing statements regarding privilege issues should be as minimal as possible in order to facilitate the Court's review and consideration of the scope of legal services provided.
- c. **Meet and Confer.** Within fourteen (14) days after service of Defendant's Supplemental Declaration regarding Discovery Monetary Sanctions, the parties shall meet and confer, in good faith, to attempt to resolve the issue of the Monetary Sanctions.
- d. **Moving Party's Response.** If not resolved by the meet and confer process, within thirty (30) days after service of the Defendant's Supplemental Declaration regarding Discovery Monetary Sanctions, Plaintiff shall file and serve any further declaration and/or other briefing paper regarding the Monetary Sanctions sought.
- e. **No Reply.** No further reply papers shall be submitted regarding the issue of the Monetary Sanctions.
- f. **Further Hearing.** The issue of Monetary Sanctions shall be set for further hearing on **November 16, 2026, 9:00 am, in Department 34** of the Court. The parties are admonished to consult any tentative ruling published by the Court in advance of the hearing and to abide by the tentative ruling procedures. See Local Rule 3.43. The Court reserves jurisdiction regarding the determination and imposition of the Monetary Sanctions.

3. The Court shall issue the order after hearing.

19. 9:01 AM CASE NUMBER: C25-02355

CASE NAME: HEATHER SILVIA VS. KAISER FOUNDATION HOSPITALS

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS, SET 1**

FILED BY: KAISER FOUNDATION HOSPITALS

TENTATIVE RULING:

Defendants Kaiser Foundation Hospitals and Kaiser Foundation Health Plan, Inc. ("Defendants") filed a motion to compel further responses to requests for production of documents propounded upon plaintiff Heather Silva ("Plaintiff") and for monetary sanctions on April 14, 2026 (the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on September 21, 2026.

Background

The discovery requests at issue in the Motion to Compel Further Responses (collectively, the "Discovery Requests") are the following:

1. Defendants' Requests for Production of Documents, Set One (the "**RPDs**") Nos. 52 and 53.

Defendants seek an order compelling Plaintiff to “execute and produce (a) a fully completed and signed HIPAA Authorization for Release of Medical, Psychiatric, and/or Psychological Records, and (b) a fully completed and signed Authorization to Release Disability and Unemployment Claim Records.”

A Separate Statement in support of the motion was filed on April 14, 2026.

Opposition papers were filed on September 8, 2026, including an opposition declaration.

A reply was filed September 14, 2026.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statement, the opposition, the reply and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery Requests and responses at issue:

RPDs

RPD No. 52.

This RPD seeks production of “For the health care practitioners identified in Special Interrogatory No. 8, a fully executed (as used in these interrogatories, “executed” means to fill in the name and address of the health care provider(s) at top of the authorization, and to date and sign the authorization) HIPAA Authorization for Release of Medical, Psychiatric, and/or Psychological Records, by YOU for all medical and associated billing records for visits and treatments received, including but not limited to mental health treatment, from August 11, 2023, to the present. A copy of the authorization is attached as Exhibit A.”

RPD No. 53.

This RPD seeks production of “A fully completed and signed Authorization to Release Disability and Unemployment Claim Records by YOU for all records pertaining to any claim for disability and unemployment insurance benefits made by YOU from August 11, 2023, to the present. A copy of the authorization is attached as Exhibit B.”

The attached Exhibits A and B are partially completed authorization and release forms.

Apparently, Defendants seek to have the Plaintiff complete, sign and return these forms through the mechanism of a document production request.

Plaintiff has objected.

While Defendant cite caselaw for the proposition that “Courts regularly compel authorizations to release medical records in analogous circumstances,” the cited case does not suggest that the appropriate mechanism is a document inspection demand.

The only California state law authority cited by Defendants for this proposition is *Miranda v. 21st Century Ins. Co.* See *Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913, 917. The court in that case ruled that the trial court had jurisdiction to rule on the discovery dispute at issue, including making an order compelling plaintiff to sign authorizations for release of her medical records. See *Id.* at 926 and 918. Nothing in this case addressed whether a document inspection demand purporting to direct the responding party to complete and sign a release form is somehow proper.

To the extent the case mentioned, in *dicta*, the basis for the underlying compliance order, it is evident that the order was based on certain specific provisions of the Insurance Code and did not involve compelling a response to document inspection demand. See *id.* at 918 (“The “compliance” defendant requested was an order compelling plaintiff to sign the authorizations for release of her medical records from Kaiser Pasadena and Kaiser Hollywood-Sunset. Defendant asserted it was entitled to seek discovery orders from the court pursuant to section 11580.2, subdivisions (f) and (p) of the Insurance Code.”).

There is simply no obligation to create or generate documents to comply with a request for inspection of documents. A party cannot be compelled by a document inspection demand to produce documents that do not exist. See Code Civ. Proc. § 2031.010 (documents subject to inspection are those “**in the possession, custody, or control**” of any party to the action) (emphasis added). A non-existent document that the propounding party wants the responding party to create cannot be said to be in that responding party’s possession, custody, or control before its creation.

The Court expresses no opinion on whether there may be another applicable mechanism to compel such authorization and/or release of relevant medical records. But it is certainly not via a document inspection demand.

Accordingly, the motion is **DENIED** as to both RPD No. 52 and 53.

Sanctions

The Court has considered and denies the imposition of sanctions. The Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2031.300(c) (“...the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”).

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is **DENIED**.
2. Any and all sanctions requests are **DENIED**.
3. The prevailing party shall prepare the order after hearing in accordance with Rule 3.1312 of the California Rules of Court (CRC).